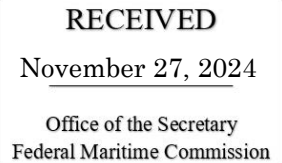


**BEFORE THE
FEDERAL MARITIME COMMISSION**



Petition No. P1-24

PETITION OF CHINESE-POLISH JOINT STOCK SHIPPING COMPANY,
FEDERAL MARITIME COMMISSION ORGANIZATION NUMBER 020107,
REQUEST FOR ENLARGEMENT OF TIME TO SUBMIT REBUTTAL
UNDER 46 C.F.R. § 565.3(b)

On behalf of the Chinese Polish Joint Stock Shipping Company (“Chipolbrok”), Federal Maritime Commission (“FMC”) organization number 020107, we hereby file this petition for an enlargement of time to file its rebuttal to the FMC’s Controlled Carrier Determination Notice (the “CC Designation”) dated November 4, 2024, under 46 C.F.R. § 502.94. See a copy of the CC Designation attached as Exhibit 1. A power of attorney can be provided upon request. The \$450 petition filing fee has been remitted via Pay.gov. See Exhibit 2. This petition is timely, eight days before Chipolbrok’s current rebuttal deadline of December 4, 2024.

1. FACTUAL BACKGROUND

Chipolbrok is a limited liability company and Chinese-Foreign joint venture registered in Shanghai, China, with offices in Shanghai, China, and Gdynia, Poland. Chipolbrok offers ocean carrier transportation of project, breakbulk, and bulk cargo along with shipper-owned containers, typically as a part of the project or breakbulk charter or shipment.

On August 12, 2024, Chipolbrok submitted its response to the FMC’s Office of General Counsel’s inquiries of June 13, 2024, regarding the ownership and control of Chipolbrok for the FMC’s determination on whether Chipolbrok is a controlled carrier. See Exhibit 3. On November 4, 2024, the FMC’s General Counsel issued the CC Designation regarding the classification of Chipolbrok as a controlled carrier within the meaning of 46 U.S.C. § 40102(8) and 46 C.F.R. § 565.2(a), as a controlled carrier of the People’s Republic of China. The CC Designation did not provide any legal analysis or identify a factual basis for the General Counsel’s determination that Chipolbrok is a controlled carrier.

2. QUALIFYING FACTORS

Chipolbrok will submit a rebuttal to the CC Designation under 46 C.F.R. § 565.3(b) but needs additional time to review the FMC’s response to a FOIA request and gather additional evidence from Poland and China to rebut the CC

Determination in this case substantively. Chipolbrok respectfully requests an extension to submit the rebuttal under 46 C.F.R. § 502.94 up to and including January 31, 2025.

Chipolbrok respectfully submits that good cause exists for the expansion of time this petition seeks, including:

1) Chipolbrok's needs to review the FMC's response to Chipolbrok's FOIA request submitted to the FMC on November 20, 2024, requesting copies of evidence and records reviewed by the Bureau of Trade Analysis and the General Counsel in connection to the FMC's CC Designation. See Exhibit 4.

2) The complexity and variety of the issues that the CC Designation raises,

3) The difficulty in obtaining additional evidence and documentation in Poland and China; and

4) Delay caused by Chipolbrok and counsel's prepaid and planned family travel and obligations related to the upcoming Thanksgiving holiday and religious and secular holidays, including Hanuka, Christmas, and the New Year.

3. CONCLUSION

Accordingly, Chipolbrok respectfully submits that good cause exists for the grant of its petition for an enlargement of time to file its rebuttal to the CC Designation, up to and including Friday, January 31, 2025. Thank you for your time and consideration in this matter. Don't hesitate to contact me if you have any questions.

Dated: November 27, 2024

Respectfully submitted,

ROBERTS & KEHAGIARAS LLP



By: Cameron W. Roberts
100 W. Broadway, Suite 660
Long Beach, CA 90802
cwr@tradeandcargo.com
Tel.: (310) 642-9800
Fax: (310) 868-2923

Counsel to Chinese-Polish Joint Stock
Shipping Company

EXHIBIT “1”



FEDERAL MARITIME COMMISSION

800 North Capitol Street, N.W.
Washington, D.C. 20573

November 4, 2024

Tel.: (202) 523-5740

Office of the General Counsel

Mr. Cameron W. Roberts
Roberts & Kehagiaras LLP
Attorneys and Counselors at Law
100 West Broadway, Suite 660
Long Beach, CA 90802
Via Email: cwr@tradeandcargo.com

Re: Controlled carrier status of Chinese-Polish Joint Stock Shipping Company

Dear Mr. Roberts:

This is to notify you that the Federal Maritime Commission has concluded that Chinese-Polish Joint Stock Shipping Company meets the criteria for classification as a controlled carrier within the meaning of 46 U.S.C. § 40102(8) and 46 C.F.R. § 565.2(a), as a controlled carrier of the People's Republic of China. Accordingly, Chinese-Polish Joint Stock Shipping Company is now subject to the requirements of 46 U.S.C. §§ 40701 – 40706, and to the Commission's regulations relating to controlled carriers. It is also subject to the provisions of 46 U.S.C. § 40502(f).

If you believe that this determination is incorrect, you may submit a rebuttal statement, as provided for in Commission's rules at 46 C.F.R. § 565.3(b). Any rebuttal statement must be received by December 4, 2024.

Sincerely,

Phillip Christopher Hughey
General Counsel

cc: Secretary
Managing Director
Director, BTA

EXHIBIT “2”

Ana Cruz

From: notification@pay.gov
Sent: Wednesday, November 27, 2024 2:06 PM
To: Ana Cruz
Subject: Pay.gov Payment Confirmation: FMC Payment Portal



An official email of the United States government



Your payment has been submitted to Pay.gov and the details are below. If you have any questions regarding this payment, please contact FMC Cash Management Officer at 202-523-5770.

Application Name: FMC Payment Portal
Pay.gov Tracking ID: 27JJHM16
Agency Tracking ID: 76893735499
Transaction Type: Sale
Transaction Date: 11/27/2024 05:06:13 PM EST
Account Holder Name: Cameron Roberts
Transaction Amount: \$450.00
Card Type: AmericanExpress
Card Number: *****9012

Email ID: ac@tradeandcargo.com
Invoice Number:
Filing ID: PETITION FOR REQUEST FOR EXTENSION TO SUBMIT REBUTTAL UNDER 46 C.F.R.
565.3(b)
Applicant Name: Chinese Polish Joint Stock Shipping Company

THIS IS AN AUTOMATED MESSAGE. PLEASE DO NOT REPLY.



Pay.gov is a program of the U.S. Department of the Treasury, Bureau of the Fiscal Service

EXHIBIT “3”

ROBERTS & KEHAGIARAS LLP

ATTORNEYS AND COUNSELORS AT LAW

100 WEST BROADWAY, SUITE 660
LONG BEACH, CA, 90802

PHONE: (310) 642-9800
FACSIMILE: (310) 868-2923

WWW.TRADEANDCARGO.COM

CAMERON W. ROBERTS
CWR@TRADEANDCARGO.COM

12 August 2024

Via e-mail to GeneralCounsel@fmc.gov

Phillip Christopher Hughey
General Counsel
Federal Maritime Commission
800 North Capitol Street, NW
Washington, DC 20573
Phone: 202-523-5740
Fax: 202-523-5738

**Re: Carrier Classification of Chinese-Polish Joint Stock Shipping Company,
Federal Maritime Commission Number 020107**

Dear General Counsel Hughey:

We are writing in response to your inquiry concerning the classification of Chinese-Polish Joint Stock Shipping Company ("Chipolbrok"), Federal Maritime Commission Number ("FMC") 020107, dated June 13, 2024. Thank you for extending the time to file a response up to and including August 15, 2024. Following a good faith investigation, we have prepared the following responses:

FMC QUESTION NO. 1: What United States foreign commerce trades does Chinese-Polish Joint Stock Shipping Company serve, offer to serve, or propose to serve?

REPLY TO QUESTION NO. 1: In the United States foreign commerce trades, Chipolbrok offers ocean transportation of project, breakbulk, and bulk cargo along with shipper-owned containers. Chipolbrok has scheduled service to the port of Houston and limited service to the ports of New Orleans, Philadelphia, and Long Beach.

FMC QUESTION NO. 2: Does a government entity directly or indirectly own or control a majority interest in any of Chinese-Polish Joint Stock Shipping Company's operating assets? If so, to what government does this entity belong? For purposes of this question, ownership

Federal Maritime Commission
12 August 2024
Page 2 of 3

or control is deemed to exist if a government directly or indirectly owns or controls *at least 50 percent* of the financial interest in the assets.

REPLY TO QUESTION NO. 2: No, a *single* government entity does not own or control a majority interest in Chipolbrok. Chipolbrok is a limited liability company (“LLC”) and Chinese-Foreign joint venture registered in Shanghai, China, with offices in Shanghai, China, and Gdynia, Poland. The Ministry of Transport of the People’s Republic of China (“MTPRC”) and the Ministry of Marine Economy and Inland Navigation of the Republic of Poland, which is now known as the Ministry of Infrastructure (“MI”), are equal owners of Chipolbrok.

FMC QUESTION NO. 3: Does *a government* have the right to appoint or disapprove the appointment of a majority of the directors, or the chief operating or executive officer of Chinese-Polish Joint Stock Shipping Company or any related entities? If so, what government?

REPLY TO QUESTION NO. 3: No LLC member Ministry of Chipolbrok can appoint a majority of the directors, the chief operating, or executive officer. Each LLC member Ministry of Chipolbrok appoints a co-chairman and two members to the board, three appointed by MI and three appointed by MTPRC, making a six-person board. The six-person board appoints two General Directors and two Managing Directors. See <http://chipolbrok.com.pl/article/3/top-management>.

FMC QUESTION NO. 4: If your answers to questions No. 2 and 3 are “no”, please respond to the following:

- (a) List every person, corporation and entity having a five (5) percent or more interest in your company and state the percent of owners of each.
- (b) Identify whether any person, corporation or entity listed in response to question 4(a) holds such interest for the benefit of another party, i.e., acts as trustee. Indicate the names of such person, corporation, or entity which holds such interest and every party to whose benefit the interest is held.
- (c) Are any names listed in answer to questions 4(a) or 4(b) associated with any government or government entity? If so, identify which names and describe their association with the government or government entity.

REPLY TO QUESTION NO. 4(a): The only LLC members of Chipolbrok are:

- MTPRC (50%)
- MI (50%)

REPLY TO QUESTION NO. 4(b): Neither MTPRC nor the MI holds such interest for the benefit of another party

REPLY TO QUESTION NO. 4(c): Yes, MTPRC is a Ministry of the People’s Republic of China, and MI is a Ministry of the Republic of Poland.

ROBERTS & KEHAGIARAS LLP
ATTORNEYS AND COUNSELORS AT LAW

Federal Maritime Commission
12 August 2024
Page 3 of 3

FMC QUESTION NO. 5: Are any government officials also executives, directors, or officers of Chinese-Polish Joint Stock Shipping Company or any related entities?

REPLY TO QUESTION NO. 5: No executives, directors, or officers of Chipolbrok are government officials.

FMC QUESTION NO. 6: Does Chinese-Polish Joint Stock Shipping Company require confidential treatment for any of the information contained in the answers to these questions? If so, please submit the following:

- A letter requesting confidential treatment that identifies the specific information for which protection is sought and demonstrates that the information is a trade secret or other confidential research, development, or commercial information.
- A confidential copy of your answers, consisting of the complete filing with a cover page marked “Confidential-Restricted,” and the confidential material clearly marked on each page.
- A public version of your answers with the confidential information excluded. The public version must state “Public Version—confidential materials excluded” on the cover page and on each affected page and must clearly indicate any information withheld.

REPLY TO QUESTION NO. 6: Chipolbrok does not request confidential treatment.

Thank you for your consideration in this matter. Please do not hesitate to contact us if you have any questions or if you need any additional information.

Sincerely yours,

ROBERTS & KEHAGIARAS LLP

A handwritten signature in black ink, appearing to read 'Cameron Roberts', with a stylized flourish at the end.

Cameron W. Roberts

cc: Chinese-Polish Joint Stock Shipping Company

EXHIBIT “4”

ROBERTS & KEHAGIARAS LLP

ATTORNEYS AND COUNSELORS AT LAW
100 W. BROADWAY, SUITE 660
LONG BEACH, CALIFORNIA 90802

PHONE: (310) 642-9800
FACSIMILE: (310) 868-2923

WWW.TRADEANDCARGO.COM

CAMERON W. ROBERTS
CWR@TRADEANDCARGO.COM

20 November 2024

Via email to FOIA@fmc.gov

Secretary of the Commission (FOIA)
Federal Maritime Commission
800 North Capitol Street, N.W.
Washington, D.C. 20573

Re: Freedom of Information Act ("FOIA") Request

**All documents regarding Carrier Classification of Chinese-Polish
Joint Stock Shipping Company, Federal Maritime Commission
Number 020107**

Dear Secretary of the Commission:

On behalf of Chinese-Polish Joint Stock Shipping Company ("Chipolbrok"), Federal Maritime Commission ("FMC") Number 020107, I hereby request copies of all records, including emails and supporting documentation, reviewed and produced by the Bureau of Trade Analysis and the General Counsel in connection to the FMC's Controlled Carrier Determination Notice concerning the classification of Chipolbrok, dated November 4, 2024. See **Exhibit 1**.

Roberts & Kehagiaras LLP agrees to pay document copying fees in the amount of \$41 in accordance with 46 CFR 503.50. Please send all correspondence to our office address above.

Thank you for your time and consideration in this matter. Please contact me if you have any questions or require any further information.

With Regards,

ROBERTS & KEHAGIARAS LLP



Cameron W. Roberts
CWR:ac

EXHIBIT “1”



FEDERAL MARITIME COMMISSION

800 North Capitol Street, N.W.
Washington, D.C. 20573

November 4, 2024

Tel.: (202) 523-5740

Office of the General Counsel

Mr. Cameron W. Roberts
Roberts & Kehagiaras LLP
Attorneys and Counselors at Law
100 West Broadway, Suite 660
Long Beach, CA 90802
Via Email: cwr@tradeandcargo.com

Re: Controlled carrier status of Chinese-Polish Joint Stock Shipping Company

Dear Mr. Roberts:

This is to notify you that the Federal Maritime Commission has concluded that Chinese-Polish Joint Stock Shipping Company meets the criteria for classification as a controlled carrier within the meaning of 46 U.S.C. § 40102(8) and 46 C.F.R. § 565.2(a), as a controlled carrier of the People's Republic of China. Accordingly, Chinese-Polish Joint Stock Shipping Company is now subject to the requirements of 46 U.S.C. §§ 40701 – 40706, and to the Commission's regulations relating to controlled carriers. It is also subject to the provisions of 46 U.S.C. § 40502(f).

If you believe that this determination is incorrect, you may submit a rebuttal statement, as provided for in Commission's rules at 46 C.F.R. § 565.3(b). Any rebuttal statement must be received by December 4, 2024.

Sincerely,

Phillip Christopher Hughey
General Counsel

cc: Secretary
Managing Director
Director, BTA